

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO S.B. 1564
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-420.06, to read:

4 36-420.06. Electronic monitoring; disclosure; posting;
5 definitions

6 A. ON [OR BEFORE DECEMBER 1, 2026 OR ON] INITIAL LICENSURE [~~AND~~
7 ~~RELICENSURE~~], EACH ASSISTED LIVING FACILITY AND NURSING CARE INSTITUTION
8 SHALL DISCLOSE TO THE DEPARTMENT [IN A DEPARTMENT-APPROVED FORMAT] WHETHER
9 THE ASSISTED LIVING FACILITY OR NURSING CARE INSTITUTION ALLOWS RESIDENTS
10 TO INSTALL AN ELECTRONIC MONITORING DEVICE IN THE RESIDENT'S ROOM OR
11 PERSONAL SPACE. [A LICENSEE FOR AN ASSISTED LIVING FACILITY OR NURSING
12 CARE INSTITUTION SHALL ENSURE THAT THE DEPARTMENT IS NOTIFIED IN A
13 DEPARTMENT-APPROVED FORMAT OF ANY CHANGES WITH RESPECT TO WHETHER THE
14 ASSISTED LIVING FACILITY OR NURSING CARE INSTITUTION ALLOWS RESIDENTS TO
15 INSTALL AN ELECTRONIC MONITORING DEVICE IN THE RESIDENT'S ROOM OR PERSONAL
16 SPACE.] THE DEPARTMENT SHALL MAKE THIS INFORMATION AVAILABLE ON THE
17 DEPARTMENT'S PUBLIC WEBSITE.

18 B. FOR THE PURPOSES OF THIS SECTION:

19 1. "ELECTRONIC MONITORING":

20 (a) MEANS THE USE OF AN ELECTRONIC MONITORING DEVICE IN THE ROOM OF
21 A RESIDENT OF A NURSING CARE INSTITUTION OR ASSISTED LIVING FACILITY TO
22 RECORD OR TRANSMIT SOUNDS OR ACTIVITY TO OR FOR THE RESIDENT, THE
23 RESIDENT'S AUTHORIZED REPRESENTATIVE OR AN AUTHORIZED THIRD PARTY.

24 (b) INCLUDES THE TAPES OR RECORDINGS FROM THE ELECTRONIC MONITORING
25 DEVICE.

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1 2. "ELECTRONIC MONITORING DEVICE" MEANS ANY DEVICE OR TECHNOLOGY
2 THAT HAS A PLACED, FIXED OR OTHERWISE INSTALLED LOCATION, THAT CAPTURES,
3 RECORDS OR BROADCASTS AUDIO OR VIDEO, OR BOTH, AND THAT IS USED FOR
4 ELECTRONIC MONITORING.

5 3. "RESIDENT" MEANS A PERSON WHO RESIDES IN AN ASSISTED LIVING
6 FACILITY OR NURSING CARE INSTITUTION.

7 Enroll and engross to conform

8 Amend title to conform

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02/17/2026

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